

25PSCV04631 25PSCV04631

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-28

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Case Number: 25PSCV04631 Hearing Date: July 28, 2026 Dept: O

Tentative Ruling

Defendant

Kaiser Foundation Hospitals PETITION TO COMPEL ARBITRATION AND MOTION TO STAY ACTION is DENIED; Defendant has not met its initial burden to demonstrate that there is a valid arbitration agreement.

Background

This

is an elder abuse case. Plaintiff RONALD DEMPS alleges the following against Defendants KAISER FOUNDATION HOSPITALS dba KAISER FOUNDATION HOSPITAL FONTANA (the "Hospital" or "Kaiser"); INLAND VALLEY PARTNERS, LLC dba INLAND VALLEY CARE AND REHABILITATION CENTER (the "Nursing Home"): In January 2025, Plaintiff was admitted to the Hospital for hypothermia after initially presenting to the emergency room for weakness and frequent falls; some days into his stay, the Hospital staff observed the beginning of a pressure injury but did not initiate wound care; ultimately the wound became a Stage 4 bedsore, infected down to the bone; in March 2025, he was transferred "from the nursing home back to the hospital" where thereafter in April 2025, Plaintiff was transferred to another hospital for continued wound care and treatment to a Stage 4 pressure injury.

On

December 24, 2025, Plaintiff filed suit for: Elder Abuse/Neglect, Negligence, and Violation of Resident's Rights.

On

February 19, 2026, the Nursing Home filed its answer.

On

April 6, 2026, Kaiser filed its answer.

On

April 21, 2026, Kaiser filed the instant motion.

On

June 3, 2026, Plaintiff filed his opposition to the motion.

On

July 21, 2026, a reply was filed.

Legal

Standard[1]

Upon a petition to compel arbitration, the trial court

“examines and, to a limited extent, construe the underlying agreement.” (Brockman v. Kaiser Foundation Hospitals (2025) 114 Cal.App.5th 569, 583.) In determining whether a valid agreement to arbitrate exists, the court weighs the declarations and other evidence. (Id. at p.

584.) Notably, the moving party bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence; once that burden is satisfied, the opposing party bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (Ibid.)

“As with any other specific performance claim, a party seeking to enforce an arbitration agreement must show the agreement’s terms are sufficiently definite to enable the court to know what it is to enforce. Only the valid and binding agreement of the parties, including all material terms well-defined and clearly expressed, may be ordered specifically performed.” (Id, internal citations and quotations omitted.)

Discussion

As argued

by Kaiser, Plaintiff is a federal Medicare member of Kaiser such that his complaint “is subject to binding arbitration pursuant to the provisions of the Kaiser Permanente Senior Advantage Medicare (HMO) Evidence of Coverage (“Agreement/EOC”) under which he has been enrolled as Kaiser member since 2016, including at the time of the services at issue.” (Motion p. 2.) In opposition, Plaintiff’s principal argument is that the enrollment form does not reference arbitration

such that it would have been impossible for Plaintiff to have contemplated arbitration of any of his claims against Kaiser. For reasons to be discussed below,

namely in

that the Agreement/EOC was not the agreement Plaintiff signed, and the arbitration agreement is found in a completely different document (or documents; it is unclear which EOC), the motion is denied.[2]

The

parties do not dispute that Plaintiff submitted a Medicare Senior Advantage Individual Enrollment Request Form ("enrollment form") to Kaiser on November 30, 2015 (Covarrubio Decl., Ex. D). Kaiser focuses on in the following provision in their reply to suggest that the enrollment form properly incorporates the EOC (reply p. 2):

But context matters as contracts are read as a whole, not in their siloed provisions. (See e.g., *Segal v. Silberstein* (2007) 156 Cal.App.4th 627, 633 ["When interpreting contracts...we must view the language of a contract as a whole, avoiding a piecemeal, strict construction approach."].) All of page 4 is as follows:

That enrollment form, which is six pages, contains no arbitration provision, no mention of an arbitration agreement, and no reference to an arbitration agreement.[3]

But still, Kaiser argues that "[b]y virtue of enroll[ing]," Plaintiff is bound by all the terms and conditions of another agreement, and notably on pages 235-239 of Exhibit A and on pages 234-237 of Exhibit B.

The following rule(s) govern when a party seeks that the terms of another document to be incorporated into the document executed by the parties.

The reference

must be clear and unequivocal, the reference must be called to the attention of the other party and he must consent thereto, and the terms of the incorporated document must be known or easily available to the contracting parties. The party seeking to enforce an arbitration provision incorporated by reference must establish the provision it seeks to enforce is the same provision to which the parties agreed....In the context of arbitration agreements, it is not sufficient for the party seeking to compel

arbitration to show the parties generally agreed to arbitrate their disputes by incorporating some arbitration provision into their contract. Rather, the party must establish the precise arbitration provision the parties incorporated into their agreement to govern their disputes. (Brockman, *supra*, 114 Cal.App.5th at p. 586, all internal citations and quotations omitted.)

With those principles in mind, both the trial and appellate court in Brockman determined that Kaiser could not compel arbitration.[4]

The facts of Brockman are somewhat nuanced as there were three enrollment forms, but otherwise an extremely instructive. (The case is cited by Plaintiff in opposition but merely mentioned (not meaningfully addressed) in a footnote by Defendant in reply.) The facts in Brockman are as follows. In 2004, the plaintiff's mother "became a member of her union's health care plan by signing a one-page enrollment form, which contained an arbitration disclosure statement." (Id. at p. 575, emphasis added.) Then, in 2005, the plaintiff's mother signed another one-page enrollment form to add the plaintiff as a dependent under her health insurance; this form also contained an arbitration disclosure statement. (Id. at pp. 576-576, emphasis added.) The 2004 enrollment form stated that the full arbitration provision was contained in a separate document, the EOC. (Id. at p. 576.) The 2005 enrollment form indicated the same by specifically referencing a separate document and certain policies. (Ibid.) Then in 2020, the plaintiff's mother transferred to a nonunion position with Kaiser, so she enrolled her and her daughter/the plaintiff as members of a self-insured (self-funded) health care plan. (Ibid.) Like the 2004 and 2005 enrollment forms, the 2020 online enrollment process stated the full arbitration agreement was in a separate document/the EOC. (Ibid.) In 2023, the plaintiff filed suit against various defendants alleging that the plaintiff received treatment (gender-affirming care) that was not medically justified. (Id. at p. 577.)

Kaiser moved to compel arbitration. In affirming the trial court's ruling, the appellate court determined that Kaiser failed to meet their prima facie burden of establishing the existence of an agreement to arbitrate under the July 2020 self-funded plan because there was "[n]o evidence of Plaintiffs agreement to arbitration under terms of the 'Benefits Booklet.'" (Id. at p. 581.) More

specifically, the court observed how (1) the 'Summary Plan Description' and the 'Benefits Booklet' are "distinctly separate documents" such that even Kaiser "itemize[d] the documents as independent exhibits in their moving papers" and

(2) how enrollees (and the court) should not be required to “scour the various booklets” for the specific arbitration language. (Id. at pp. 58–581.) As for the other 2004 and 2005 enrollment forms, Kaiser failed to “adduce evidence showing that they provided plaintiff or her mother with notice of these agreements.” (Id. at p. 581.)

Here, if the Brockman court determined that agreements that at the very least contained an arbitration disclosure statement were insufficient, it is almost inarguable then that one that contains no mention of arbitration can be said to have been assented to.

All in all, while there is evidence that Plaintiff enrolled in Kaiser’s plan and chose Kaiser membership over other health care options available to him through Medicare, Kaiser did not meet its threshold burden of proving the existence of a valid arbitration agreement. Consequently, the court need not reach other issues (i.e., unconscionability, whether Health & Safety Code § 1363.1 is preempted by the Federal Medicare Act, whether the court retains discretion pursuant to C.C.P. § 1281.2(c)).

Conclusion

Based on the foregoing, the motion is denied.

[1] The court overrules all of Plaintiff’s evidentiary objections. Plaintiff objects to all of Kaiser’s exhibits on the grounds that, inter alia, the exhibits are hearsay, lack of foundation, lack of authentication, and/or relevance. But, as noted in Kaiser’s response to said objections, Kaiser has properly authenticated its 2025 and 2016 Agreements/EOCs (Exs. A & B), the enrollment form submitted by Plaintiff (Ex. D), its mailing records database entry (Ex. E), its Arbitration Opt-Out letter template (Ex. F), and its Centers for Medicare & Medicaid Services (CMS) approval correspondence of its opt-out letter and procedure (Exs. G & H) via multiple Kaiser employees (e.g., Danny Covarrubio [Operations Manager, Medicare Membership Administration] or Nancy Garcia [Manager in the Medicare Department for the California Division] who have the relevant background to attest to Kaiser’s procedures for enrollment in its health plans. To the extent that Plaintiff is attempting to exclude certain evidence because they do not prove certain facts, that is not the function of evidentiary objections. After all, that is very purpose of the petition/motion which is to weigh the documentary evidence to reach a final

determination. (Brockman, *infra*, 114 Cal.App.5th at p. 584.)

[2] Perhaps this point could use further briefing, but it is unclear how the opt-out letter, which is sent “within 60 days of his or her initial Senior Advantage effective date,” (see e.g., Petition p. 5) can bind a member to arbitration when it is not assented to at the time of completing the enrollment form. To the extent that Kaiser argues that the opt-out notice creates binding arbitration because the notice (as with other documents provided to Senior Advantage enrollees) was submitted to the CMS for approval before use and CMS approved it, the relevancy of that argument is unclear as the legality of measures is determined by courts, not agencies.

[3] It is also unclear when the member receives the Agreement/EOC. The numerous declarations filed make it somewhat unclear as to the exact process of enrolling and when materials are received.

[4] The court acknowledges that in Brockman, the respective documents for the relevant years (2004, 2005, 2020) were not provided to the trial court.